

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 970

BY SCOTT

AN ACT

RELATING TO CAMPAIGN DISCLOSURES; AMENDING SECTION 67-6607, IDAHO CODE, TO REQUIRE CERTAIN ADDITIONAL REPORTING FOR POLITICAL COMMITTEES SUPPORTING ANY MEASURE; AMENDING SECTION 67-6610D, IDAHO CODE, TO PROHIBIT CERTAIN FOREIGN INFLUENCE OF CANDIDATES, POLITICAL COMMITTEES, AND MEASURES; AMENDING CHAPTER 66, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-6610E, IDAHO CODE, TO PROVIDE RESTRICTIONS ON COLLECTION AND RELEASE OF CERTAIN DONOR INFORMATION AND TO PROVIDE A PENALTY FOR VIOLATIONS; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 67-6607, Idaho Code, be, and the same is hereby amended to read as follows:

67-6607. REPORTS OF CONTRIBUTIONS AND EXPENDITURES BY CANDIDATES AND POLITICAL COMMITTEES. (1) Each candidate or the political treasurer for each candidate, and each political committee or the political treasurer of each political committee, shall file with the secretary of state a statement of all contributions received and all expenditures and encumbrances made by or on behalf of the candidate or political committee, according to the schedule provided in this section. The statement shall itemize each contribution received and each expenditure or encumbrance made during the reporting period and shall include the following:

(a) Under contributions, the statement shall include a list of all the contributions received, including any funds or property of the candidate used to cover expenditures. The statement shall list the full name and complete address of each person who contributed an aggregate amount of more than fifty dollars (\$50.00) and the amount contributed by that person. The statement may list as a single item the total amount of contributions of fifty dollars (\$50.00) or less; and

(b) Under expenditures, the statement shall include the name and address of each person to whom an expenditure or encumbrance was made in the amount of twenty-five dollars (\$25.00) or more, and the amount, date, and purpose of each such expenditure. Each expenditure or encumbrance in the amount of twenty-five dollars (\$25.00) or more shall be evidenced by an invoice, receipt, or canceled check or an accurate copy thereof. Such evidence shall not be filed with the statement but shall be retained by the committee or candidate for a period of one (1) year after the statement has been filed. The statement may list as a single item the total amount of expenditures and encumbrances of less than twenty-five dollars (\$25.00) without showing the exact amount of or requiring evidence of each such expenditure or encumbrance. Anything of

value, other than money, paid for or contributed by any person shall be listed both as an expenditure and as a contribution.

(2) For the first report under this section, the reporting period shall cover the period beginning with the first contribution, expenditure, or encumbrance through the end of the current reporting period. Each candidate and each political committee, or the treasurer for a candidate or political committee or ballot measure, shall file the report described under subsection (1) of this section as follows:

(a) In the year of the election, a monthly report shall be filed for each month of the year. Each report shall be filed by the tenth day of the month following the month being reported; and

(b) For the nonelection year, an annual report covering the nonelection year shall be filed by January 10 of the following year.

(3) Notwithstanding any other reports required under this section, each candidate and each political committee, or the political treasurer for each candidate and each political committee, shall notify the secretary of state of any contribution of one thousand dollars (\$1,000) or more. This notification shall be made within forty-eight (48) hours after the receipt of such contribution and shall include the name of the candidate, political committee or measure, the identification of the contributor, and the date of receipt and amount of the contribution. The notification shall be in addition to the reporting of these contributions in the regular reports.

(4) All reports required pursuant to this section shall be filed online with the secretary of state, unless a waiver has been provided under section 67-6623, Idaho Code, by no later than midnight on the date the filing is due.

(5) (a) In the case of any political committee organized for the purpose of supporting any measure, the following additional information shall be included in its reports filed pursuant to subsection (2) of this section:

(i) A certification from the political treasurer of the political committee that no preliminary activity was funded by any foreign national, whether directly or indirectly; and

(ii) A certification from the political treasurer of the political committee that the donor associated with each contribution is not a foreign national and such donor has not knowingly or willfully received, solicited, or accepted, whether directly or indirectly, contributions or expenditures from one (1) or more foreign nationals in excess of ten thousand dollars (\$10,000) within the four (4) year period immediately preceding the date of the contribution.

(b) Upon receipt of a contribution, the political treasurer of the political committee shall obtain a written certification from each donor that the donor is not a foreign national and has not knowingly or willfully accepted funds aggregating in excess of ten thousand dollars (\$10,000) from one (1) or more foreign nationals within the four (4) year period immediately preceding the date of the contribution. The donor certifications shall be retained by the committee but are not required to be filed with the political treasurer certifications required by paragraph (a) of this subsection. If the committee does not receive this certification from each donor, the contribution shall be

divested in the same manner as unlawful contributions pursuant to section 67-6610(b), Idaho Code.

(6) Each person, or political treasurer of any entity, who makes any expenditure supporting or opposing any measure shall certify that such person has not knowingly or willfully accepted funds aggregating in excess of ten thousand dollars (\$10,000) from one (1) or more foreign nationals within the four (4) year period immediately preceding the date the expenditure is made and that such person will not do so through the remainder of the calendar year in which the ballot initiative or referendum will appear on the ballot.

(7) For the purposes of this section:

(a) "Foreign national" has the same meaning as defined in section 67-6610D, Idaho Code.

(b) "Preliminary activity" means any activity undertaken by the proponents of a proposed measure prior to the time such proposal is deemed a measure pursuant to the provisions of section 67-6602(11), Idaho Code. Such activity includes but is not limited to conducting a poll, drafting ballot measure language, conducting a focus group, making telephone calls, or undertaking travel related to the proposed measure.

~~(5)~~ (8) Reports required to be filed under the provisions of this section shall be filed until the account no longer shows any unexpended balance of contributions or expenditure deficit.

SECTION 2. That Section 67-6610D, Idaho Code, be, and the same is hereby amended to read as follows:

67-6610D. FOREIGN CONTRIBUTIONS, FOREIGN INDEPENDENT EXPENDITURES, ~~AND FOREIGN ELECTIONEERING COMMUNICATIONS, AND FOREIGN INFLUENCE PROHIBITED.~~

(1) (a) ~~A Except as provided in paragraph (b) of this subsection, a foreign national shall not make a contribution, directly or indirectly, to any candidate, political committee, or measure or, make electioneering communications or, make independent expenditures, or direct, dictate, control, or directly or indirectly participate in the decision-making process related to any election campaign, including any decisions concerning the making of contributions or expenditures to influence an election campaign. A foreign national shall not solicit, directly or indirectly, the making of a contribution or expenditure by another person to influence an election campaign, and no candidate or political committee shall knowingly or willfully receive, solicit, or accept contributions from any foreign national, whether directly or indirectly.~~

(b) A foreign national, pursuant to subsection (2) (e) of this section, may make contributions and independent expenditures if such contributions or expenditures originate entirely from funds generated by such entity's United States operations and all decisions concerning such contributions or expenditures, except for setting overall budget amounts, are made by individuals who are United States citizens or permanent residents.

(2) As used in this section, "foreign national" means:

(a) An individual who is not a citizen of the United States and is not lawfully admitted for permanent residence;

1 (b) A government or subdivision of a foreign country;

2 (c) A foreign political party; ~~or~~

3 (d) Any entity, such as a partnership, association, corporation, or-
4 ganization, union, or other combination of persons, that is organized
5 under the laws of or has its principal place of business in a foreign
6 country-; or

7 (e) Any entity, such as a partnership, association, corporation, or-
8 organization, union, or other combination of persons, that is organized
9 under the laws of the United States or has its principal place of busi-
10 ness in the United States that is wholly owned or majority-owned by any
11 foreign national.

12 (3) A violation of the provisions of this section shall be prosecuted
13 and punished as provided in section 67-6625(2) through (5), Idaho Code. Pro-
14 vided, however, any person who knowingly and willfully violates the provi-
15 sions of this section is guilty of a felony when:

16 (a) The aggregate amount of contributions, independent expenditures,
17 or cost of electioneering communications made in violation of this sec-
18 tion exceeds one thousand dollars (\$1,000) in a consecutive twelve (12)
19 month period; or

20 (b) The person pleads guilty to or is found guilty of a knowing and will-
21 ful violation of the provisions of this section for a second time within
22 ten (10) years, notwithstanding the form of the judgment or withheld
23 judgment.

24 (4) If any provision of this section or its application to any person or
25 circumstance is held invalid, the remainder of the section or the applica-
26 tion of the provision to other persons or circumstances is not affected.

27 SECTION 3. That Chapter 66, Title 67, Idaho Code, be, and the same is
28 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
29 ignated as Section 67-6610E, Idaho Code, and to read as follows:

30 67-6610E. RESTRICTIONS ON COLLECTION AND RELEASE OF DONOR INFORMATION
31 -- PENALTY. (1) Lawful donors to a tax-exempt organization possess a right
32 of privacy in their donations. Any investigation of an alleged violation of
33 section 67-6607 or 67-6610D, Idaho Code, must occur in a manner that shields
34 the identity of lawful donors as much as possible. The secretary of state,
35 county clerks, and other state or local governmental entities may not col-
36 lect or require the submission of information on the identity of any donor
37 to a tax-exempt organization other than those directly related to an alleged
38 violation of section 67-6607 or 67-6610D, Idaho Code.

39 (2) The secretary of state, county clerks, and other state or local gov-
40 ernmental entities may not disclose to the public, or to another government
41 official not directly involved in the investigation, information revealing
42 the identity of any donor to a tax-exempt organization, unless the informa-
43 tion is regarding the identity of a donor that engaged in conduct prohibited
44 by section 67-6607 or 67-6610D, Idaho Code, after a final determination has
45 been made confirming that such violation occurred.

46 (3) Knowing or willful violations of this section shall be punishable
47 as a misdemeanor.

1 SECTION 4. An emergency existing therefor, which emergency is hereby
2 declared to exist, this act shall be in full force and effect on and after
3 July 1, 2026.